

SUPREME COURT OF THE STATE OF NEW YORK	)	<u>SUMMONS</u>
COUNTY OF KINGS	)	
-----x	)	Index #: _____/2023
ROBERT SCOTT,	)	
	)	Plaintiff designates:
Plaintiff,	)	Kings County
	)	as the place of trial
-against-	)	
	)	Basis of the venue is:
THE CITY OF NEW YORK, THE NEW YORK CITY	)	Plaintiff's home address
POLICE DEPARTMENT ("NYPD"), POLICE OFFICER	)	
JAMES V. COCOZZO, POLICE OFFICER THOMAS	)	
SANDEEP, POLICE OFFICER JOHN CHAPMAN, THE	)	Plaintiff's address is:
OFFICE OF DISTRICT ATTORNEY, KINGS COUNTY,	)	733 Hinsdale Street, Apt: 2-R
and CHRISTOPHER ARMETTA, individually and in his	)	Brooklyn, New York 11207
official capacity as an employee and/or attorney of THE	)	
OFFICE OF DISTRICT ATTORNEY, KINGS COUNTY	)	
and KEM SEXIUS,	)	
	)	
Defendant(s).	)	
-----x	)	

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance upon the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant addresses:	Plaintiff's attorney:
THE CITY OF NEW YORK	EZRA B. GLASER AND ASSOICATES
c/o CORPORATION COUNSEL OF THE	Attorney for the Plaintiff
CITY OF NEW YORK	3201 Fort Hamilton Parkway, #1R
100 Church Street	Brooklyn, New York 11218
New York, New York 10007	Phone: (212) 385-9300
THE NEW YORK CITY POLICE	
DEPARTMENT c/o CORPORATION	
COUNSEL OF THE CITY OF NEW YORK	
100 Church Street	
New York, New York 10007	
POLICE OFFICER JAMES V. COCOZZO	
THE NEW YORK CITY POLICE	
DEPARTMENT c/o 75th PRECINCT	

1000 Sutter Avenue Brooklyn, New York 11208 POLICE OFFICER THOMAS SANDEEP THE NEW YORK CITY POLICE DEPARTMENT c/o 75th PRECINCT 1000 Sutter Avenue Brooklyn, New York 11208 POLICE OFFICER JOHN CHAPMAN THE NEW YORK CITY POLICE DEPARTMENT c/o 75th PRECINCT 1000 Sutter Avenue Brooklyn, New York 11208 KINGS COUNTY DISTRICT ATTORNEY'S OFFICE 350 Jay Street Brooklyn, New York 11201 CHRISTOPHER ARMETTA KINGS COUNTY DISTRICT ATTORNEY'S OFFICE 350 Jay Street Brooklyn, New York 11201 KEM SEXIUS 733 Hinsdale Street (Apt. 1F) Brooklyn, New York 11207	
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Dated: Brooklyn, New York
April 9, 2023

SUPREME COURT OF THE STATE OF NEW YORK	)	<u>COMPLAINT</u>
COUNTY OF KINGS	)	
-----X	)	Index #: _____/2023
ROBERT SCOTT.	)	
	)	
Plaintiff,	)	
-against-	)	
	)	
THE CITY OF NEW YORK, THE NEW YORK CITY	)	
POLICE DEPARTMENT ("NYPD"), POLICE OFFICER	)	
JAMES V. COCOZZO, POLICE OFFICER THOMAS	)	
SANDEEP, POLICE OFFICER JOHN CHAPMAN, THE	)	
OFFICE OF DISTRICT ATTORNEY, KINGS COUNTY,	)	
and CHRISTOPHER ARMETTA, individually and in his	)	
official capacity as an employee and/or attorney of THE	)	
OFFICE OF DISTRICT ATTORNEY, KINGS COUNTY and	)	
KEM SEXIUS,	)	
	)	
Defendant(s).	)	
-----X	)	

Plaintiff, **ROBERT SCOTT**, by his attorneys, **EZRA B. GLASSER, ESQ.**, complaining of the Defendants herein upon information and belief, respectfully shows to this Court, and alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff, ROBERT SCOTT, brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 for violations of his civil rights, as said rights are secured by the aforementioned statute and the Constitutions of the State of New York and the United States. Plaintiff further brings action for violation of his rights under New York State law, and abuse of process.

THE PARTIES

2. That on June 1, 2022, and at all times hereinafter mentioned, the Plaintiff, ROBERT SCOTT, is and was a resident of Kings County, City and State of New York.
3. That on June 1, 2022, and at all times hereinafter mentioned, the Defendant, THE CITY

- OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. That on June 1, 2022, and at all times hereinafter mentioned, the Defendant, THE CITY OF NEW YORK, maintained, controlled, and managed the Defendant, THE NEW YORK CITY POLICE DEPARTMENT (“NYPD”), a duly authorized public authority, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.
 5. That on June 1, 2022, and at all times hereinafter mentioned, the employees of the 75th Precinct of THE NEW YORK CITY DEPARTMENT (“NYCPD 75th Precinct”), were acting under the auspices and/or authority of the Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
 6. That on June 1, 2022, and at all times hereinafter mentioned, the Defendants, OFFICER JAMES V. COCOZZO, SGT. THOMAS SANDEEP, and OFFICER JOHN CHAPMAN, were Police Officers and/or employees of the NYCPD 75th Precinct, a subdivision of the Defendant, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and, as such, were acting within the scope of their duties at the time of the acts complained herein.
 7. That upon information and belief, on June 1, 2022, the Defendant KEM SEXIUS is and was a resident of the State of New York, County of Kings.
 8. That on June 1, 2022, and at all times hereinafter mentioned, the Defendant, THE NEW YORK CITY POLICE DEPARTMENT, either personally or through its employees, agents and/or servants, was acting under color of state law, and/or in compliance with the official

rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York.

9. That on June 1, 2022, and at all times hereinafter mentioned, the Defendant, THE OFFICE OF DISTRICT ATTORNEY, KINGS COUNTY, maintained, controlled, and existed as a duly-authorized public authority, authorized to perform all functions of a District Attorney's Office under the applicable sections of the New York State Law and the New York State Criminal Procedure Law, with prosecutors and/or investigators acting under the direction and supervision of the aforementioned prosecutor's office.
10. That on June 1, 2022, and at all times hereinafter mentioned, the employees of the Defendant, THE OFFICE OF DISTRICT ATTORNEY, KINGS COUNTY, were acting under the auspices and/or authority of the aforesaid Defendant.
11. That on June 1, 2022, and at all times hereinafter mentioned, the Defendant, CHRISTOPHER ARMETTA, was an employee and/or Assistant District Attorney of the Defendant, THE OFFICE OF DISTRICT ATTORNEY, KINGS COUNTY, and, as such, was acting within the scope of their duties at the time of the acts complained herein.

FACTS

12. That on June 1, 2022, at approximately 8:30 p.m., the Plaintiff, ROBERT SCOTT, was operating his father's vehicle when he was wrongfully arrested by OFFICER JAMES V. COCOZZO, an employee and/or agent of the Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, for allegedly assaulting another individual.
13. That on June 1, 2022, the Plaintiff, ROBERT SCOTT, was an inmate wrongfully detained by the Defendant, THE NEW YORK CITY POLICE DEPARTMENT, and its employees

- and/or agents, including OFFICER JAMES V. COCOZZO, SGT. THOMAS SANDEEP, and OFFICER JOHN CHAPMAN, in the County of Kings, City of and State of New York.
14. That the aforesaid false arrest of the Plaintiff, ROBERT SCOTT, was committed due to the recklessness, carelessness, and negligent conduct of the Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, OFFICER JAMES V. COCOZZO, SGT. THOMAS SANDEEP, and OFFICER JOHN CHAPMAN, at the time of the events at issue in this lawsuit, who allowed and/or helped to create the false allegations made by the Defendant, KEM SEXIUS against the Plaintiff while the aforementioned Police Officers were acting within the scope of their responsibilities for the Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
15. The aforesaid Defendants further ignored the Plaintiff's claims, and video presented by the Plaintiff, indicating that the Defendant, KEM SEXIUS had initiated an attack upon the Plaintiff, and that the Plaintiff acted in self defense.
16. That the Plaintiff, ROBERT SCOTT, was further maliciously prosecuted by the Defendants, THE OFFICE OF DISTRICT ATTORNEY, KINGS COUNTY and CHRISTOPHER ARMETTA, who, prior to and during said malicious prosecution, saw exculpatory evidence that the Plaintiff had acted in self-defense during the alleged assault.
17. That the Defendants, THE OFFICE OF DISTRICT ATTORNEY, KINGS COUNTY and CHRISTOPHER ARMETTA, maliciously prosecuted the Plaintiff, ROBERT SCOTT, knowing that said Plaintiff was innocent.
18. That the Defendants, THE OFFICE OF DISTRICT ATTORNEY, KINGS COUNTY and CHRISTOPHER ARMETTA, maliciously prosecuted the Plaintiff, ROBERT SCOTT, due

to the Plaintiff's decision not to accept a plea deal.

19. That the criminal charges filed against the Plaintiff, ROBERT SCOTT, were patently false.
20. That on December 2, 2022, the Plaintiff, ROBERT SCOTT, was found not guilty of the alleged assault, and the case brought against him was thus dismissed.
21. That prior to the date hereto, on December 22, 2022, with the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment or payment thereof, was filed, and that thereafter THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.
22. That on June 1, 2022, and at all times hereinafter mentioned, the Defendant herein, KEM SEXIUS, made false allegations to arriving police officers, and later, to members of the Kings County District Attorney's Office, after initiating an altercation with the Plaintiff and then falsely claiming that the Plaintiff had initiated said altercation after the Plaintiff acted in self defense to protect himself. The Defendant SEXIUS's false allegations were disproven by video presented by the Plaintiff, which was purposely ignored by the other Defendants for the purpose of moving forward with the prosecution and zealously attempting to attain a plea deal, despite the Plaintiff's innocence.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
UNCONSTITUTIONAL CUSTOMS AND POLICIES

23. That at all times hereinafter mentioned, the Plaintiff, ROBERT SCOTT, repeats, reiterates, and realleged each and every allegation set forth above numbered "1" through "22" with the same force and effect as if fully set forth herein.

24. That the aforementioned false arrest and wrongful detention was carried out by the Defendants, OFFICER JAMES V. COCOZZO, SGT. THOMAS SANDEEP, and OFFICER JOHN CHAPMAN, in their capacity as officers, agents, and/or employees of Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, with all the actual and/or apparent authority attendant thereto, pursuant to the customs, policies, usages, practices, procedures, and rules of THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK, and under the supervision of ranking officers of THE NEW YORK CITY POLICE DEPARTMENT.
25. That the existence of customs, policies, usages, practices, procedures, and rules of the Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, constituted a deliberate indifference to the safety, well-being, and constitutional rights of the Plaintiff.
26. That the foregoing customs, policies, usages, practices, procedures and rules of the Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, were the direct and proximate cause of the constitutional violations suffered by the Plaintiff, as alleged herein.
27. That the existence of the aforementioned unconstitutional customs and polices may be inferred based on repeated occurrences of similar wrongful conduct, as documented and supported by numerous civil rights actions filed against the Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
28. That as a result of the foregoing acts committed by the aforementioned Police Officers and/or other employees of the Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, the Plaintiff, ROBERT SCOTT, sustained loss of

freedom, liberty, embarrassment, and mental anguish.

29. That as a result of the foregoing, the Plaintiff, ROBERT SCOTT, is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the first cause of action.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
CONSTITUTIONAL VIOLATIONS UNDER COLOR OF LAW

30. That at all times hereinafter mentioned, the Plaintiff, ROBERT SCOTT, repeats, reiterates, and realleges each and every allegation set forth above numbered “1” through “29” with the same force and effect as if fully set forth herein.
31. That at all times hereinafter mentioned, each and all of Police Officers and/or employees of THE NEW YORK CITY POLICE DEPARTMENT were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
32. That the Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, OFFICER JAMES V. COCOZZO, SGT. THOMAS SANDEEP, and OFFICER JOHN CHAPMAN, collectively and individually while acting under the color of state law, were directly and actively involved in violating the constitutional rights of the Plaintiff.
33. That the Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, OFFICER JAMES V. COCOZZO, SGT. THOMAS SANDEEP, and OFFICER JOHN CHAPMAN, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct.

34. That all of the foregoing acts by Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, OFFICER JAMES V. COCOZZO, SGT. THOMAS SANDEEP, and OFFICER JOHN CHAPMAN, deprived the Plaintiff, ROBERT SCOTT, of federally protected rights, including, but not limited to, the right:
- i. Not to be deprived of liberty without due process of law;
 - ii. Not to have cruel and unusual punishment imposed upon him by police officers and;
 - iii. To receive equal protection under the law.
35. That as a result of the foregoing acts committed by the aforementioned Police Officers and/or other employees of the Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, the Plaintiff, ROBERT SCOTT, sustained loss of freedom, liberty, embarrassment, and mental anguish.
36. That as a result of the foregoing, the Plaintiff, ROBERT SCOTT, is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the second cause of action.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
CONSTITUTIONAL VIOLATIONS UNDER 42 U.S.C. §1983

37. That at all times hereinafter mentioned, the Plaintiff, ROBERT SCOTT, repeats, reiterates, and realleges each and every allegation set forth above numbered “1” through “36” with the same force and effect as if fully set forth herein.
38. That all of the aforementioned acts deprived Plaintiff, ROBERT SCOTT, of the rights, privileges, and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

39. That as a result of the foregoing, the Plaintiff, ROBERT SCOTT, sustained loss of freedom, liberty, embarrassment, and mental anguish.
40. That as a result of the foregoing, the Plaintiff, ROBERT SCOTT, is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the third cause of action.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983**

41. That at all times hereinafter mentioned, the Plaintiff, ROBERT SCOTT, repeats, reiterates, and realleges each and every allegation set forth above numbered “1” through “40” with the same force and effect as if fully set forth herein.
42. That the Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, OFFICER JAMES V. COCOZZO, SGT. THOMAS SANDEEP, and OFFICER JOHN CHAPMAN, acted with intent to do harm to the Plaintiff, ROBERT SCOTT, without excuse or justification.
43. That as a result of the foregoing, the Plaintiff, ROBERT SCOTT, sustained loss of freedom, liberty, embarrassment, and mental anguish.
44. That as a result of the foregoing, the Plaintiff, ROBERT SCOTT, is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the fourth cause of action.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF:
MUNICIPAL LIABILITY**

45. That at all times hereinafter mentioned, the Plaintiff, ROBERT SCOTT, repeats, reiterates, and realleges each and every allegation set forth above numbered “1” through “44” as if the same were more fully set forth at length herein.

46. That the various individual police officers and Defendants, OFFICER JAMES V. COCOZZO, SGT. THOMAS SANDEEP, and OFFICER JOHN CHAPMAN, as Police Officers and/or employees of the Defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK, assaulted, battered, and violated the constitutional rights of the Plaintiff, ROBERT SCOTT, notwithstanding their knowledge that their actions would jeopardize the Plaintiff's well-being, safety, and constitutional rights.
47. That the acts complained of were carried out by the aforementioned police officers and Defendants, OFFICER JAMES V. COCOZZO, SGT. THOMAS SANDEEP, and OFFICER JOHN CHAPMAN, in their capacity as Police Officers and/or employees of THE NEW YORK CITY POLICE DEPARTMENT and/or THE CITY OF NEW YORK, with all the actual and/or apparent authority attendant thereto.
48. The acts complained of were carried out by the aforementioned police officers and Defendants, OFFICER JAMES V. COCOZZO, SGT. THOMAS SANDEEP, and OFFICER JOHN CHAPMAN, in their capacity as Police Officers and/or employees of THE NEW YORK CITY POLICE DEPARTMENT and/or THE CITY OF NEW YORK, pursuant to the customs, policies, usages, practices, procedures, and rules of THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK, all under the supervision of ranking officers of said agencies or departments.
49. That the aforementioned customs, policies, usages, practices, procedures, and rules of THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK include, but are not limited to, the following unconstitutional practices:
- (a) Arresting an innocent person notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrong doing;

- (b) Subjecting an innocent person to arrest which fails to conform to fundamental standards of due process as recognized by this and other jurisdictions throughout the United States.
50. That the foregoing customs, policies, usages, practices, procedures, and rules of THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK, were the direct and proximate cause of the constitutional violations suffered by Plaintiff, ROBERT SCOTT, as alleged herein.
51. That the foregoing customs, policies, usages, practices, procedures, and rules of THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK were the moving force behind the constitutional violations suffered by the Plaintiff, ROBERT SCOTT, as alleged herein.
52. That as a result of the foregoing, the Plaintiff, ROBERT SCOTT, sustained loss of freedom, liberty, embarrassment, and mental anguish.
53. That as a result of the foregoing, the Plaintiff, ROBERT SCOTT, is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court on the fifth cause of action.

AS AND FOR AN SIXTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. § 1983

54. At all times hereinafter mentioned, the Plaintiff, ROBERT SCOTT, repeats, reiterates and realleges each and every allegation set forth above numbered “1” through “53” with the same force and effect as if fully set forth herein.
55. The aforementioned individual defendants, including police officers OFFICER JAMES V. COCOZZO, SGT. THOMAS SANDEEP, OFFICER JOHN CHAPMAN, Assistant District Attorney CHRISTOPHER ARMETTA and KEM SEXIUS issued legal process or participated in such legal process that caused the Plaintiff, ROBERT SCOTT, to be placed

under arrest.

56. The aforementioned individual defendants, including police officers OFFICER JAMES V. COCOZZO, SGT. THOMAS SANDEEP, OFFICER JOHN CHAPMAN, Assistant District Attorney CHRISTOPHER ARMETTA and KEM SEXIUS, arrested and/or caused the arrested and/or caused the arrest of the Plaintiff, ROBERT SCOTT, in order to obtain a collateral objective outside the legitimate ends of the legal process.
57. The aforementioned individual defendants acted with intent to do harm to Plaintiff, ROBERT SCOTT, without excuse or justification.
58. As a result of the foregoing, Plaintiff ROBERT SCOTT sustained, *inter alia*, deprivation of liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.
59. The aforementioned individual defendants, including police officers OFFICER JAMES V. COCOZZO, SGT. THOMAS SANDEEP, OFFICER JOHN CHAPMAN, Assistant District Attorney CHRISTOPHER ARMETTA and KEM SEXIUS, arrested and/or caused the arrested and/or caused the arrest of the Plaintiff, ROBERT SCOTT, who did wantonly, maliciously and intentionally commit the tort of abuse of process against the Plaintiff by causing the prosecution against the Plaintiff based on the knowingly false information provided by the Defendant, KEM SEXIUS.
60. The criminal prosecution of the Plaintiff resulted in a disposition favorable to Plaintiff. Contrarily, during the course of the prosecution against her of the existence of exculpatory evidence, and that the evidence was in fact fabricated – as supported by the evidence.
61. The aforesaid Defendants, acting in concert in bringing forth and causing the prosecution of the Plaintiff, even though each of the individual Defendants, including Defendant KEM

SEXIUS, knew that the charges against the Plaintiff were false, malicious, and completely contrary to the actual events that occurred on June 1, 2022.

62. That as a result of the foregoing, Plaintiff is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court on the sixth cause of action.

AS AND FOR AN SEVENTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
PENDENT STATE LAW CLAIMS

63. That at all times hereinafter mentioned, the Plaintiff, ROBERT SCOTT, repeats, reiterates, and realleges each and every allegation set forth above numbered “1” through “62” as if the same were more fully set forth at length herein.
64. That the Plaintiff, ROBERT SCOTT, brings this pendent state law claim against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, OFFICER JAMES V. COCOZZO, SGT. THOMAS SANDEEP, and OFFICER JOHN CHAPMAN, for arresting the Plaintiff, ROBERT SCOTT, or aiding and abetting in said actions.
65. That the foregoing attack, assault, battery, and torture committed by the aforesaid Police Officers and/or employees of THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK against the Plaintiff occurred due to the Defendants’ actual malice towards the Plaintiff, ROBERT SCOTT.
66. That the Plaintiff, ROBERT SCOTT, was harmed by being arrested and suffered embarrassment, humiliation, as well as the loss of his good name among his peers.
67. That as a result of the foregoing, the Plaintiff, ROBERT SCOTT, sustained loss of freedom, liberty, embarrassment, and mental anguish.
68. That as a result of the foregoing, the Plaintiff, ROBERT SCOTT, is entitled to

compensatory damages in the sum exceeding the jurisdiction of all courts lower than Supreme Court on the seventh cause of action.

AS AND FOR A EIGHTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
NEGLIGENT HIRING AND RETENTION

69. That at all times hereinafter mentioned, the Plaintiff, ROBERT SCOTT, repeats, reiterates, and realleges each and every allegation set forth above numbered “1” through “68” as if more fully set forth at length herein.
70. That the Defendants, THE CITY OF NEW and THE NEW YORK CITY POLICE DEPARTMENT, failed to exercise reasonable care and diligence in the selection and hiring of its agents, servants, and employees.
71. That the Defendants, THE CITY OF NEW and THE NEW YORK CITY POLICE DEPARTMENT, failed to exercise reasonable care and diligence in the selection, screening, retention, engagement, employment, supervision, and training of its agents, servants, and employees.
72. That as a result of the foregoing, the Plaintiff, ROBERT SCOTT, sustained loss of freedom, liberty, embarrassment, and mental anguish.
73. That as a result of the foregoing, the Plaintiff, ROBERT SCOTT, was damaged in a sum exceeding the jurisdiction of all courts lower than the Supreme Court on the seventh cause of action.

AS AND FOR AN NINTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
MALICIOUS PROSECUTION

74. That at all times hereinafter mentioned, the Plaintiff, ROBERT SCOTT, repeats, reiterates, and realleges each and every allegation set forth above numbered “1” through “73” as if more fully set forth at length herein.

75. That the Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, OFFICER JAMES V. COCOZZO, SGT. THOMAS SANDEEP, and OFFICER JOHN CHAPMAN, are responsible for the institution or continuation of the baseless case against the Plaintiff, ROBERT SCOTT.
76. That the Defendants, CHRISTOPHER ARMETTA and THE OFFICE OF DISTRICT ATTORNEY, KINGS COUNTY, abused the legal process by actively participating and helping Defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT launch a baseless criminal case against the Plaintiff, ROBERT SCOTT, and further took action to direct and aid said criminal case against said Plaintiff and should be thus held liable for malicious prosecution.
77. That the Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, OFFICER JAMES V. COCOZZO, SGT. THOMAS SANDEEP, OFFICER JOHN CHAPMAN, CHRISTOPHER ARMETTA, and THE OFFICE OF DISTRICT ATTORNEY, KINGS COUNTY, failed to fully investigate the facts surrounding the criminal allegations and, as such, did not have probable cause or reasonable grounds to support the criminal case.
78. That the Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, CHRISTOPHER ARMETTA, and THE OFFICE OF DISTRICT ATTORNEY, KINGS COUNTY, did not have enough facts to allow a reasonable person to infer that the Plaintiff, ROBERT SCOTT, assaulted an individual.
79. That the Defendants, CHRISTOPHER ARMETTA and THE OFFICE OF DISTRICT ATTORNEY, KINGS COUNTY, continued to pursue the baseless criminal case against the Plaintiff, ROBERT SCOTT, after being shown exculpatory evidence following

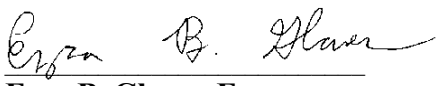
Plaintiff's false arrest.

80. That due to the allegations brought by the Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, CHRISTOPHER ARMETTA, and THE OFFICE OF DISTRICT ATTORNEY, KINGS COUNTY, the Plaintiff, ROBERT SCOTT, was harmed by being falsely accused and arrested, suffering embarrassment, humiliation, as well as the loss of his good name among his peers and family.
81. That by reason of the foregoing, this Plaintiff, ROBERT SCOTT is informed and verily believes his aforesaid injuries are permanent, and that he will permanently suffer from the effects of the aforesaid injuries; and that, furthermore, the Plaintiff will be caused to suffer permanent embarrassment, emotional suffering, and continuous physical and emotional pain as a result of the aforesaid injuries.
82. That by reason of the foregoing, the Plaintiff, ROBERT SCOTT, was damaged in a sum exceeding the jurisdiction of all courts lower than the Supreme Court in the ninth cause of action.

WHEREFORE, the Plaintiff, ROBERT SCOTT, demands judgment in a sum exceeding the jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the first, second, third, fourth, fifth, sixth, seventh, eighth and ninth causes of action, in addition to punitive damages, plus attorney's fees, costs, and disbursements of this action.

DATED: Brooklyn, New York
April 9, 2023

Yours, etc.,


BY: Ezra B. Glaser, Esq.
EZRA B. GLASER & ASSOCIATES
Attorneys for the Plaintiff

ROBERT SCOTT

3021 Fort Hamilton Parkway, Suite 1R

Phone: (212) 385-9300

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF KINGS)

Plaintiff, ROBERT SCOTT, the undersigned, being a resident of the State of New York, being duly sworn, do state the following under the penalties of perjury:

That I am over the age of 18 years of age and serve as the Plaintiff in this lawsuit. I have read the foregoing VERIFIED COMPLAINT and know the contents thereof; that the allegations made within the aforesaid complaint are true to my own knowledge, except as to those matters stated upon information and belief and as to said matters, I believe them be true.

Dated: Brooklyn, New York
April 9, 2023

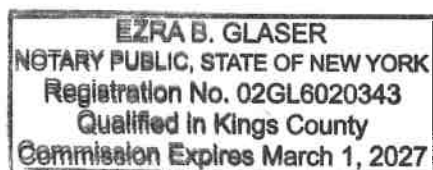


ROBERT SCOTT, Plaintiff

Sworn to before me this 9th day of April, 2023.



Notary Public



Index #: _____/2023

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
ROBERT SCOTT,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT (“NYPD”), POLICE OFFICER JAMES V. COCOZZO,
POLICE OFFICER THOMAS SANDEEP, POLICE OFFICER JOHN
CHAPMAN, THE OFFICE OF DISTRICT ATTORNEY, KINGS
COUNTY, and CHRISTOPHER ARMETTA, individually and in his
official capacity as an employee and/or attorney of THE OFFICE OF
DISTRICT ATTORNEY, KINGS COUNTY and KEM SEXIUS,

Defendant(s).

-----X
SUMMONS AND COMPLAINT
-----X

EZRA B. GLASER AND ASSOCIATES

Attorneys for the Plaintiff

ROBERT SCOTT

3021 Fort Hamilton Parkway, Suite 1R

Brooklyn, New York 11218

Phone: (212) 385-9300

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